Tyler Allen Lofall - Plaintiff
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UNITED STATES DISTRICT COURT

DISTRICT OF OREGON

PORTLAND DIVISION

TYLER A. LOFALL, Plaintiff, v. **THE COUNTY OF CLACKAMAS at el,** *West Linn Pd, Officer Dana Gunnarson, Officer Catlin Blyth, Deputy District Attorney Rebecca Portlock, Clackamas County Jail, Clackamas County Sheriff Office, Clackamas County Officer John Doe 1, Officer John Doe 2,* Defendant(s),	**Case No.: 3:24-cv-839** NOTICE TO THE COURT

NOTICE OF AMENDED COMPLAINT, REQUEST FOR TOLLING OF STATUTE OF LIMITATIONS, AND CONSOLIDATION OF CLAIMS UNDER 28 U.S.C. §§ 1331, 1367, AND FEDERAL RULE OF CIVIL PROCEDURE 42(A)

NOTICE TO THE COURT –

I. INTRODUCTION

Plaintiff, **Tyler A. Lofall**, proceeding pro se, submits this **Notice of Amended Complaint** to inform the Court that Plaintiff has filed a **consolidated amended complaint**, which merges claims from two prior complaints into a single unified case. This amended complaint includes all previously named defendants and claims in one action, resolving any procedural issues that led to the dismissal of prior cases.

Plaintiff respectfully requests that the Court **toll the statute of limitations** on all claims, **consolidate** the claims under **FRCP 42(a)**, and **exercise federal jurisdiction** under **28 U.S.C. § 1331** (Federal Question Jurisdiction) and **28 U.S.C. § 1367** (Supplemental Jurisdiction). Plaintiff also brings attention to the **federal court's potential complicity** in procedural delays and the violation of constitutional rights under **18 U.S.C. §§ 1001, 241, and 242**.

II. VIOLATIONS UNDER 18 U.S.C. §§ 1001, 241, AND 242

Plaintiff alleges that both the **federal court's inaction** and the **state court's collusion** have resulted in violations of Plaintiff's constitutional rights, as detailed in **18 U.S.C. §§ 1001, 241, and 242**:

1. 18 U.S.C. § 1001 (FALSE STATEMENTS AND FRAUD)

The federal court has allowed procedural barriers and misrepresentations to persist, creating an environment where Plaintiff cannot receive a fair trial or adequate protection of rights. The denial of proper legal protection, coupled with rejection of filings and manipulation of evidence, amounts to **fraudulent obstruction** of Plaintiff's access to justice.

2. 18 U.S.C. § 241 (CONSPIRACY AGAINST RIGHTS)

The collusion between state and federal actors, including state judges, appointed counsel, and district attorneys, has deprived Plaintiff of the right to due process and access to justice. These actions constitute a **conspiracy** to deny Plaintiff's constitutional rights, in violation of **18 U.S.C. § 241**.

3. 18 U.S.C. § 242 (DEPRIVATION OF RIGHTS UNDER COLOR OF LAW)

Plaintiff has been repeatedly denied legal counsel, denied access to proper filing

systems, and obstructed in filing documents through the PACER system. These barriers have been imposed under the guise of legal process, constituting a **deprivation of rights under color of law**. The federal court's failure to correct these violations leaves them liable under **18 U.S.C. § 242**.

III. SYSTEMIC BARRIERS TO COURT ACCESS AND COLLUSION

Plaintiff has been systematically blocked from filing claims by multiple procedural barriers, including in-person filing denials, PACER rejections, and dismissals based on technicalities. These barriers are part of a systemic failure to provide Plaintiff with due process and access to justice.

A. Intentional Delays and Obstructions

1. DENIAL OF APPOINTED COUNSEL:

Plaintiff has been denied appointed counsel **five times**, despite having constitutional claims at stake. This denial of representation has left Plaintiff unable to properly defend claims.

2. PROCEDURAL REJECTIONS:

Plaintiff's attempts to file documents through PACER, including the submission of **thumb drives** containing thousands of pages of evidence, have been rejected multiple times. Additionally, the court's use of systems such as PACER's **.replace loops** has caused mutations in Plaintiff's filings, compromising the integrity of key evidence.

B. Failure to Provide ADA Accommodations

Plaintiff's **legal blindness** has compounded the difficulty of navigating these procedural barriers. The federal court's failure to provide ADA accommodations, such as assistance with electronic filings or extending deadlines to account for Plaintiff's disability, has further obstructed Plaintiff's access to justice. The Court has a duty under the **Americans with Disabilities Act (ADA)** to ensure that disabled individuals are not subjected to undue procedural harm.

IV. FAILURE OF THE FEDERAL COURT TO PROVIDE DUE PROTECTION

The **federal court's inaction** has left Plaintiff in a state of **incapacitation**, caused by false arrest, loss of property, and procedural obstructions. These failures, compounded by the denial of ADA accommodations, have left Plaintiff unable to properly pursue claims or secure the assistance of counsel.

BY ALLOWING THESE SYSTEMIC FAILURES TO PERSIST, THE FEDERAL COURT HAS BECOME COMPLICIT IN THE STATE'S VIOLATIONS OF PLAINTIFF'S CONSTITUTIONAL RIGHTS. THIS COMPLICITY, COMBINED WITH THE COURT'S REFUSAL TO INTERVENE, LEAVES THE FEDERAL COURT OPEN TO LIABILITY UNDER 18 U.S.C. §§ 1001, 241, AND 242. THE GOVERNMENT'S REFUSAL TO PROTECT PLAINTIFF'S RIGHTS HAS CREATED A LEGAL ENVIRONMENT WHERE PROCEDURAL ERRORS ARE WEAPONIZED TO AVOID LIABILITY.

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V. IRONIC COMPLEXITY OF THE STATE'S SYSTEMS AND AUTOMATION

The **complexity of the state's procedural barriers** and its reliance on **hidden automation systems** have created an environment where Plaintiff cannot receive justice without significant resources, which Plaintiff has been systematically denied.

1. AUTOMATION SYSTEMS CONCEALED FOR ELITE LEGAL STATUS

The state has intentionally kept automation systems, such as those used in the PACER system, inaccessible to the public. These systems are designed to maintain the **elite status of the legal profession** and make it impossible for individuals like Plaintiff to navigate the legal process without considerable resources. This has contributed directly to the violation of Plaintiff's rights, as Plaintiff was denied the ability to properly link evidence or meet procedural requirements.

2. PROCEDURAL FAILURE LEADS TO SYSTEMIC HARM

If the state's systems were **transparent and accessible**, Plaintiff would not have been wrongfully detained for defending property, nor would Plaintiff have lost over **$111,943 and two years of life**. The state's failure to manage the **AOB claim**

effectively led to Plaintiff's wrongful arrest and continued legal battles. The reliance on hidden systems to create barriers to justice has caused systemic harm, violating Plaintiff's constitutional rights.

VI. REQUEST FOR TOLLING, CONSOLIDATION, AND ACCOUNTABILITY

Plaintiff respectfully requests that this Court:

1. TOLL THE STATUTE OF LIMITATIONS:

Due to the significant delays caused by both state and federal procedural barriers, as well as Plaintiff's **legal blindness** and the lack of ADA accommodations, Plaintiff requests that the statute of limitations on all claims be tolled.

2. CONSOLIDATE ALL RELATED CLAIMS:

Under **Federal Rule of Civil Procedure 42(a)**, Plaintiff requests that the Court consolidate all related claims into one federal case. This includes claims that have been delayed in state court and newly discovered evidence.

3. HOLD FEDERAL ACTORS ACCOUNTABLE:

Plaintiff requests that the Court hold the federal court and its officers accountable under **18 U.S.C. §§ 1001, 241, and 242** for their failure to **protect** Plaintiff's constitutional rights and their complicity in the violations perpetrated by state actors.

VII. AUTHORITIES AND EXHIBITS[1]

A. Constitutional Provisions Invoked

(1) First Amendment –

(a) Right to petition the courts for redress of grievances:

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[1] ALL MY EXHIBITS CONTIUNUE TO HAVE ERRORS POPULATED SEEMINGLY POPUL:ATED FROM ATTACHMENTS FROM PACERS AND JAVASCRIPT FILES ATTACHED WITH COURT DOCUMENTS. PREVENTING THEM FROM BEING COMINED WITH OTHER FILES. THEY ARE ATTACHED TO THE COMPLAINT.

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(b) Plaintiff's right to access the court system has been obstructed by repeated by the following:

1. Repeated denials in Statre Court costing Home, Property, business, health and hope. Without redress due to false arrest. (see Exhibit – 97 efilings, not including 50 or so personally submitted filings, and filings to the Court of Appeals and Supeme Court Denying me my ability to petition due to condition the defendants have left me in.

2. Defendants Financially incapacitated me by causing me to miss my Assignment of Benefits and then Denying me any chance to remedy the issue when the AOB was stollen by fiduciary fraud admitted on the record. (See Exhibit AOB and Exhibit Transcript of Wyattt Bender (backed by video of signing)

3. PACER rejections and systemic delays.

4. Forced To catch Covid and missed multiple court dates, moreover the simple fact I was in jail with the covernment not even listening to anything I drafted, my appointed attorneys both against me, and the District Attorney ignoring my requests 14 times. There is no more benefit in ignoring my requests than there is in denial of the request and therefore as far as my perspective

I misewlll not get any response such as when I was in jail and given covid. My grievance went ignored for 5 weeks. And my letters to the attorney general pleading civil rights, unheard and ignored as well.

(2) Fourth Amendment – Protection against unlawful searches and seizures:

(a) - Plaintiff's wrongful arrest and detention without due process and loss of property (e.g., $111,943), violated this right.

(b) 3 vehicles,

(c) 2 trailers at Macys house,

(d) 5 more in Washougal including a work 2 work trailers one with about $50,000 or more in it by its self,

(e) the ability to run my business

with no authority to do so. Moreover Blyth and Gunnarson had a duty to and promised to preservre my property and failed to do so.

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(3) Fifth Amendment – Protection against self-incrimination and guarantees of due process:

(a) The state's failure to follow proper legal procedures in the wrongful arrest and evidence manipulation violates due process rights under this amendment.

(b) Clackamas County and revoking my release agreement, giving me a bail, waiting for me to bail and then revoking the bail on the same acts that I already committed the fifth amendment, and was prosecutorial misconduct in that they used circumvented both my speedy trial rights, and my sentencing all together for I spent the better part of the 129 days in jail and never saw trial.

(4) Sixth Amendment – Right to a fair trial and effective counsel:

(a) Plaintiff has been denied effective legal counsel five times,

(b) violating the Sixth Amendment right to a fair trial.

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(c) I was also denied effective legal counsel in that:

1. my first appointed counsel withheld exculpatory evidence I didn't know existed, and

2. my second appointment i was not given a choice, and that forced choice coluded with the DA and Judge behind my back and i was forced out of the court room on trial day because the DA was attempting to cover up the collusion between her and that appointed counsel Rubin Medina,and and in doing so made me stay in jail for no reason between June 10th 2022 and July 14th, however the court ordered my release on July 1st, however again the jail refused to follow the court order despite having the documents telling them to do so.

(5) Seventh Amendment – Right to a jury trial in civil cases:

(a) Plaintiff's civil claims for damages was lost and a tremendous amount of time was harmed (two years before in litigation, two yeaars and counting after, all of which i am fighting homeless, and the three years of remodel and torture from the property, involving significant losses,

invoke the Seventh Amendment right to a jury trial.

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(6) Fourteenth Amendment (Due Process Clause) – Guarantees due process and fair treatment under the law:

(a) The systemic delays,

(b) obstructions, (in bias treatment by the police, the jail and the courts))

(c) and procedural barriers in state and federal courts violate Plaintiff's right to due process.

(7) Fourteenth Amendment (Equal Protection Clause) – Right to equal protection under the law:

(a) Denial of access to counsel when the harms caused were from the defendants and that harm is whats preventing me from getting my assistance,

(b) and procedural barriers disproportionately affect Plaintiff, especially due to Plaintiff's legal blindness. (its puttung me at risk to lose everything because of a procedural error... thats organized extortion, the US Government is a Terrorist.)

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B. Federal Statutes Invoked

(1) 42 U.S.C. § 1983 – Civil action for deprivation of rights: - This statute provides the basis for suing state actors for constitutional violations, including those perpetrated by officers and the District Attorney in Plaintiff's case. (SEE TABLE BELOW)

(2) 18 U.S.C. § 1001 – False Statements and Fraud: - The court's allowance of procedural misrepresentations and obstructions that have hindered Plaintiff's ability to access justice may fall under this statute

(3) 3. 18 U.S.C. § 241 – Conspiracy against rights: - Plaintiff alleges that state and federal actors conspired to deprive Plaintiff of constitutional rights through delays, rejections, and manipulation of court proceedings.

(4) 4. 18 U.S.C. § 242 – Deprivation of rights under color of law: - The state and federal courts, as well as their officers, denied Plaintiff access to justice and violated Plaintiff's constitutional rights under color of law.

C. Exhibits for Submission

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(1) EXHIBIT 1 - Court Transcript (June 10, 2022): Collusion and Proof of the false COVID-19 claim that led to an unjust delay in Plaintiff's trial.

(2) EXHIBIT 2 - Court Transcript (June 24, 2022): Shows States own Witness calls the DA a liar and claims Plaintiff committed no crimes, and clearly indicates there is a "Vendetta" from the DA. Transcript showing Macy's coerced testimony and her statement that Plaintiff committed no crime.

(3) EXHIBIT 3 - Macy and Lofall Text messages her stating the "Government isnt fair" Also text message to Mother

(4) EXHIBIT 4 - Declaration of Mother stating the text was macy

(5) EXHIBIT 5 - Body Camera Footage Request (14 Requests):need to view the case filing from 22CR10908 in its entirety (See Exhibit)

(6) EXHIBIT 6 - Proof of Plaintiff's repeated requests for body camera footage that was never provided, suggesting suppression of exculpatory evidence, Plaintiff alleges the lies from Dana were massive, and the WLPD knew of all of the harm, they framed Flaintiff plainly… And then their Counsil attempts to lie to cause confusion and issues due to the court believing the attorney and not the pro se litigant and hes crooked.

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(7) EXHIBIT 7 - Evidence showing that 62 of Plaintiff's legal files were deleted and that Plaintiff was denied access to the law library, obstructing Plaintiff's ability to defend against charges.

(8) EXHIBIT 8 - Proof of Filing Attempts via PACER: - Documentation of Plaintiff's filings being rejected through PACER, including records of mail submissions, returned packages, and specific rejections cited by the court.

(9) EXHIBIT 9 - Correspondence with Legal Representatives: - Emails or letters showing Plaintiff's attempts to communicate with court-appointed attorneys, illustrating collusion or ineffective assistance of counsel.

(10) EXHIBIT 10 - Jail Records Showing Extended Detention: - Records of Plaintiff's unlawful detention for an additional week after the July 1, 2022 release order.

(11) EXHIBIT 11 - PACER Rejection Notices:

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VIII. CONCLUSION

The **federal court** is at risk of becoming complicit in the **systemic violations** of Plaintiff's rights. The procedural barriers and delays caused by both the state and federal courts have left Plaintiff unable to assert constitutional rights or secure legal protections. The **court's failure to intervene** directly violates federal law, and those responsible for these violations should be held accountable.

Here's a draft of your message for the exhibit list, incorporating the serious concerns you've outlined while maintaining a direct tone appropriate for the legal context:

Exhibit Notice and Statement of Court-Caused Hardship

I, Tyler A. Lofall, hereby provide this formal notice to the court that I am physically unable to provide yet another set of document facts and evidence due to the continuous errors and unjust obstacles imposed by the court's

requirements. These systemic failures have made it impossible to meet the unreasonable demands placed upon me, and I assert that this harm has been directly caused by the actions of the U.S. government and its representatives.

The court's imposition of unattainable requirements, alongside the documented collusion between district attorneys, appointed attorneys, and judges (all of whom have been caught on camera engaging in illegal and unethical acts such as giving away cars and lying under oath), has systematically violated my rights. These actions have not only destroyed my credibility but have also cost me over $300,000, rendered me homeless, and ruined years of my life.

Despite my repeated attempts to address these issues lawfully—having filed over 150 motions to remedy the situation—I have been dismissed at every turn. My rights to due process, equal protection, and access to justice have been blatantly disregarded. The court's failure to address the corruption within its own system, including leveraging witnesses to prosecute me unlawfully, shows a deep-seated complicity that cannot be ignored.

This is a clear and egregious violation of my fundamental rights, and for the court to continue ignoring these issues is tantamount to endorsing this

ongoing injustice. The damage done to my life is irreparable, and the failure of the court to rectify these abuses signals a complete abandonment of the principles of justice.

I have given notice multiple times. I have followed every rule, and yet, my efforts have been met with indifference and denial. This cannot continue. The failure to address these serious injustices will leave me with no conclusion other than that the system desires my complete destruction.

The U.S. government and its institutions must take immediate corrective action, as the cumulative harm caused to my life is far too great to be swept aside. I will not accept losing everything due to the failures of this system, and I will not walk away from this without a fight.

The time for rectification is now.

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Respectfully submitted,

Respectfully submitted this 24th Day of June 2024

/s/ Tyler Allen Lofall

Tyler Allen Lofall-Plaintiff
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